

CODE EVALUATION, CONFIDENTIALITY, AND LIMITED COLLABORATION AGREEMENT

This Code Evaluation, Confidentiality, and Limited Collaboration Agreement (the "**Agreement**") is made effective as of **February 7, 2026** (the "**Effective Date**"), by and between:

- **Disclosing Party / Owner:** Tuan Anh Dinh Bui, with address at **West Lafayette, Indiana, USA** ("**Owner**"), and
- **Receiving Party / Evaluator:** _____, with address at _____ ("**Evaluator**").

Owner and Evaluator are each a "**Party**" and together the "**Parties**."

1. Purpose

Owner may disclose certain source code, repositories, documentation, architecture, business plans, and technical know-how solely so Evaluator can evaluate a potential partnership, collaboration, or role with Owner (the "**Purpose**").

Evaluator may use Confidential Information **only** for the Purpose and for no other purpose.

2. Confidential Information

"**Confidential Information**" means all non-public information disclosed by or on behalf of Owner, whether in written, oral, visual, electronic, or other form, including without limitation:

1. Source code, object code, scripts, APIs, prompts, model configs, pipelines, datasets, architecture diagrams, product roadmaps, and technical documentation.
2. Repository contents, commits, branches, issues, pull requests, tickets, CI/CD configurations, infrastructure details, credentials locations, and deployment details.
3. Business, commercial, strategic, and financial information.
4. Any notes, analyses, summaries, derivations, reproductions, or extracts prepared by Evaluator that are based on the above.

Confidential Information does **not** include information Evaluator proves by written records:

1. Was publicly available at the time of disclosure (without breach of this Agreement),
 2. Became public through no fault of Evaluator,
 3. Was lawfully known to Evaluator before disclosure by Owner, or
 4. Was independently developed by Evaluator without using Owner's Confidential Information.
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3. Non-Disclosure and Non-Use Obligations

Evaluator shall:

1. Keep Confidential Information strictly confidential and use at least reasonable care, and no less than the care Evaluator uses for its own most sensitive information.
 2. Not disclose Confidential Information to any third party except as expressly permitted by this Agreement.
 3. Not copy, reproduce, distribute, publish, post, share, or transmit Confidential Information except as strictly necessary for the Purpose.
 4. Not use Confidential Information to build, train, improve, benchmark, replicate, or commercialize any competing or derivative product, service, or codebase.
 5. Not reverse engineer, decompile, or attempt to extract proprietary logic from provided materials beyond what is strictly necessary for the Purpose.
 6. Immediately notify Owner in writing of any actual or suspected unauthorized access, use, or disclosure.
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4. Access Restrictions

Evaluator shall:

1. Access repositories/systems only through accounts approved by Owner.
 2. Keep access credentials secure; no sharing of credentials.
 3. Use only authorized devices and secure storage.
 4. Not remove or bypass access controls, audit controls, branch protections, or security safeguards.
 5. Limit access to persons who are explicitly approved in writing by Owner and who sign obligations at least as protective as this Agreement.
 6. Acknowledge Owner may immediately suspend or revoke repository/system access upon any suspected breach of this Agreement, pending investigation.
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5. Intellectual Property Ownership

1. **Owner retains all rights, title, and interest** in and to all Confidential Information and all related intellectual property.
 2. No license, transfer, assignment, or ownership right is granted to Evaluator by disclosure, except the limited, revocable right to use Confidential Information solely for the Purpose.
 3. Any unauthorized use is a material breach.
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6. Feedback and Collaboration Output

1. Evaluator may provide suggestions, comments, or feedback ("**Feedback**").
 2. Evaluator assigns to Owner all right, title, and interest in Feedback related to Owner's Confidential Information and Project.
 3. Unless a separate written agreement is signed by both Parties, **no joint ownership, partnership equity, or compensation rights are created** by this Agreement.
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7. No Circumvention / No Unauthorized Exploitation

During the Term and for **one (1) month** after termination, Evaluator shall not, directly or indirectly:

1. Use Owner's Confidential Information to solicit Owner's customers, investors, suppliers, or strategic counterparties for a competing effort.
2. Use Owner's Confidential Information to create a substitute offering intended to displace Owner.

This section does not restrict lawful competition based solely on information that is not Confidential Information.

8. Legal Compulsion

If Evaluator is legally compelled (e.g., subpoena, court order) to disclose Confidential Information, Evaluator shall, to the extent legally permitted:

1. Promptly notify Owner in writing before disclosure,
 2. Cooperate with Owner in seeking protective treatment, and
 3. Disclose only the minimum portion legally required.
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9. Term and Survival

1. This Agreement begins on the Effective Date and continues for **one (1) month** unless earlier terminated in writing by either Party (the "**Term**").
 2. Confidentiality and non-use obligations survive termination for **five (5) years**, and for trade secrets, for so long as such information remains a trade secret under applicable law.
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10. Return or Destruction of Materials

Within **five (5) business days** after Owner's written request or termination (whichever is earlier), Evaluator shall:

1. Return or securely destroy all Confidential Information (including copies, notes, extracts, and backups under Evaluator's control), and
2. Certify in writing completion of return/destruction.

Evaluator may retain one archival copy only if required by law, subject to continuing confidentiality obligations.

11. Injunctive Relief

Evaluator acknowledges that unauthorized use or disclosure may cause irreparable harm for which monetary damages may be insufficient. Owner is entitled to seek injunctive or equitable relief, in addition to any other remedies at law or equity, without waiving other rights.

12. Warranties and Disclaimers

Confidential Information is provided "**as is.**" Owner makes no warranties, express or implied, regarding accuracy, completeness, merchantability, fitness for a particular purpose, or non-infringement.

13. Independent Relationship; No Partnership Created

This Agreement does not create a partnership, joint venture, employment relationship, fiduciary relationship, or agency relationship between Parties.

14. Governing Law and Venue

This Agreement is governed by the laws of **the State of Indiana**, without regard to conflict-of-laws rules.

Exclusive venue for disputes is **the state and federal courts serving Tippecanoe County, Indiana (West Lafayette, Indiana)**, and each Party consents to personal jurisdiction there.

15. Miscellaneous

1. **Assignment:** Evaluator may not assign this Agreement without Owner's prior written consent.
 2. **Entire Agreement:** This document is the entire agreement on this subject and supersedes prior discussions.
 3. **Amendments:** Any amendment must be in writing and signed by both Parties.
 4. **Severability:** If any provision is unenforceable, remaining provisions remain in effect.
 5. **Counterparts / E-Signatures:** Signatures in counterparts and electronic signatures are valid and enforceable.
 6. **No Waiver:** Failure to enforce any provision is not a waiver of future enforcement.
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16. Optional U.S. Trade Secret Notice (DTSA)

If applicable under U.S. law, the Parties acknowledge that 18 U.S.C. § 1833(b) provides immunity in limited circumstances for confidential disclosures of trade secrets to government officials or attorneys for reporting/investigating suspected legal violations, and for sealed court filings.

17. Project Scope (Exhibit A)

Project/Repository Name(s):

- WindieOS
- _____

Repository URL(s):

- <https://github.com/buiilding/WindieOS>

Access Granted (check all that apply):

- ☒ Read-only repository access
- ☒ Time-limited clone access (expires: **March 7, 2026**)
- ☐ Issue tracker access
- ☒ Documentation access
- ☐ Staging environment access

Explicitly Prohibited:

- ☒ Public forks
 - ☒ Sharing outside approved list
 - ☒ Local copies after termination
 - ☒ Model training on provided code/content
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18. Signatures

By signing below, each Party acknowledges it has read, understood, and agrees to be bound by this Agreement.

OWNER

Name: Tuan Anh Dinh Bui

Title (if any): _____

Entity (if any): _____

Signature: _____

Date: _____

EVALUATOR

Name: _____

Title (if any): _____

Entity (if any): _____

Signature: _____

Date: _____

Optional Witness / Notary Block (if required by local law)

Witness Name: _____

Witness Signature: _____

Date: _____